

SENATE BILL 1299

By Johnson

AN ACT to amend Tennessee Code Annotated, Section 55-10-417 and Section 55-10-425, relative to ignition interlock devices.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-10-417(b), is amended by deleting "blood alcohol concentration" and substituting "breath alcohol concentration".

SECTION 2. Tennessee Code Annotated, Section 55-10-417(d)(3), is amended by deleting "Require the person" and substituting "Except as provided in § 55-10-425(c)(1)(B), require the person".

SECTION 3. Tennessee Code Annotated, Section 55-10-425, is amended by adding the following as a new subsection:

(m)

(1) This subsection (m) applies to persons who are required to have an ignition interlock device installed on their vehicle pursuant to this part and are unable to appear at the ignition interlock device provider as required for calibration, monitoring, or inspection of the device due to the participant being an active service member of the United States Armed Forces who is deployed outside the state of Tennessee for more than thirty (30) days due to military orders or a temporary change of duty station order.

(2) If a person who has been ordered to have an ignition interlock device on their vehicle pursuant to this part, is an active service member of the United States Armed Forces and is ordered to be deployed outside their state of residence for more than thirty (30) days, then the person may request the

department to temporarily toll the required ignition interlock usage period by submitting proof of the deployment to the ignition interlock provider. The ignition interlock provider shall forward the request and documentation to the department within five (5) business days of receipt. Proof may consist of an official military order or temporary change of duty station order, which reflects the time period and change of the person's new duty assignment.

(3)

(A) The department shall review and either approve or deny all requests to toll the required ignition interlock usage period pursuant to this subsection (m).

(B) If granted, the toll period must be for the number of days the person is actively deployed. At the end of the deployment, the person will have thirty (30) days to have the device calibrated, and the required ignition interlock usage period will resume. If the deployment period exceeds ninety (90) days, then the person may elect to have the provider remove the device from the vehicle to eliminate the cost of the monthly lease of the device. However, if the device was removed from the vehicle during the deployment period, then the person will have thirty (30) days after the end of the deployment period to have the device reinstalled on the vehicle, and the required ignition interlock usage period will resume upon reinstallation of the device.

(4) Failure to comply with the requirements of this subsection (m) may result in the entire ignition interlock usage period starting over.

(5) A tolling period granted pursuant to this subsection (m) does not relieve a person from the requirement to only operate a vehicle that is equipped

with an ignition interlock device or waive any other requirements the participant is subject to pursuant to this part.

(6)

(A) A person aggrieved by the denial of a request to have the ignition interlock usage period tolled under this subsection (m) may, within ten (10) business days of the date of the denial, request a review by the commissioner or the commissioner's designee. The request for review must include copies of the proof submitted to the department, the denial letter from the department, and any information showing why the person believes the denial was incorrect.

(B) Within ten (10) business days of receiving the request for review the commissioner or the commissioner's designee shall make a written determination based on information in the department's records and the information provided by the person requesting the review as to whether or not the toll period should be granted.

(C) The request for review will stay the continuation of the required ignition interlock usage period until the commissioner's or the commissioner's designee's ruling is issued.

(D) A person may appeal the commissioner's or the commissioner's designee's ruling pursuant to § 4-5-322.

SECTION 4. Tennessee Code Annotated, Section 55-10-425(c)(1)(B), is amended by deleting the subdivision and substituting:

(B) Failing to appear at the ignition interlock device provider when required for calibration, monitoring, or inspection of the device; provided, that:

(i) A person is not in violation of this subdivision (c)(1)(B) if the person appears for calibration, monitoring, or inspection at any time the provider is open for operation within seven (7) calendar days before or seven (7) calendar days after the date of the person's scheduled appointment;

(ii) A person may make an appointment for calibration, monitoring, or inspection within the seven-calendar-day period before or after their original appointment, but the calibration, monitoring, or inspection must be completed within the seven-calendar-day period before or after their original appointment for subdivision (c)(1)(B)(i) to apply; and

(iii) The next monthly calibration appointment must be no more than thirty (30) days from the date the person appears for the calibration, monitoring, or inspection of their device; and

SECTION 5. Tennessee Code Annotated, Section 55-10-425(c)(2), is amended by deleting "subsection (h)" and substituting "subsections (h) and (m)".

SECTION 6. Tennessee Code Annotated, Section 55-10-425(d)(1)(A), is amended by deleting the subdivision and substituting:

(A) Tamper with, circumvent, or attempt to start the motor vehicle with a breath alcohol concentration equal to or greater than the two-hundredths of one percent (0.02%) breath alcohol concentration calibration setting required by § 55-10-417(b); provided, however, that a person is not in violation of this subdivision (d)(1)(A) for attempting to start the motor vehicle if a subsequent retest within ten (10) minutes shows a breath alcohol concentration of less than two-hundredths of one percent (0.02%) and review of the digital images associated with each test confirms that the same person performed both tests;

SECTION 7. Tennessee Code Annotated, Section 55-10-425(d)(1)(C), is amended by deleting the subdivision and substituting:

(C) Fail a rolling test required by the ignition interlock device with a breath alcohol concentration equal to or greater than two-hundredths of one percent (0.02%); provided, however, that a person is not in violation of this subdivision (d)(1)(C) for failing a rolling test if a subsequent retest within ten (10) minutes shows a breath alcohol concentration of less than two-hundredths of one percent (0.02%) and review of the digital images associated with each test confirms that the same person performed both tests; or

SECTION 8. Tennessee Code Annotated, Section 55-10-425(d)(1)(D), is amended by deleting "subsection (h)" and substituting "subsections (h) and (m)".

SECTION 9. Tennessee Code Annotated, Section 55-10-425(h)(2), is amended by deleting "consecutive three-hundred-sixty-five-day period" and substituting "ignition interlock usage period".

SECTION 10. Tennessee Code Annotated, Section 55-10-425(h)(7), is amended by deleting "three-hundred-sixty-five-day period" and substituting "ignition interlock usage period".

SECTION 11. Tennessee Code Annotated, Section 55-10-425(h)(9)(A), is amended by deleting "three-hundred-sixty-five-day period" and substituting "ignition interlock usage period".

SECTION 12. Tennessee Code Annotated, Section 55-10-425(h)(9)(C), is amended by deleting the phrase "three-hundred-sixty-five-day period" and substituting "ignition interlock usage period".

SECTION 13. Tennessee Code Annotated, Section 55-10-425(l), is amended by deleting the subsection and substituting:

(l)

(1) A person who is subject to § 55-10-409 or this section may petition a court with proper jurisdiction for reinstatement of the person's driver license under this part regardless of the date when the person first became subject to those limitations. The court may order reinstatement of the person's driver license if:

(A) The person is in compliance with all other requirements for reinstatement for the offense that the interlock was required for;

(B) The person has no other revocations or suspensions on the person's driving record; and

(C) The person's only noncompliance with the ignition interlock requirements has been with regard to the required calibration, monitoring, or inspection of the device. The judge must make specific findings in the order with regard to each instance of noncompliance with the ignition interlock requirements, including, but not limited to, noncompliance with required calibration, monitoring, or inspection of the device or must attach documentation from the department of safety showing that there are no other instances of noncompliance other than required calibration, monitoring, or inspection of the device.

(2) Upon receipt of the court order, if the person is in compliance with all other requirements for reinstatement from the offense that resulted in the ignition interlock being required, including payment of fees under § 55-50-303(b) and any other applicable fees, and the person has no other revocations or suspensions on the person's driving record, then the department shall reinstate the license.

SECTION 14. Section 4 of this act takes effect on January 1, 2026, the public welfare requiring it. All other sections of this act take effect upon becoming law, the public welfare requiring it.